

Christopher D. Mandarich SB 220693
Teona Pipia SB 343337
Hayk Stambultsyan SB 320973
Martin Weingarten SB 201906
MANDARICH LAW GROUP, LLP
P.O. Box 109032 Chicago, IL 60610
Phone: 877.285.4918
Facsimile: 818.888.1260
Mandarich Law Group, LLP California Debt Collector License Number 10795-99.
Attorneys for Plaintiff: CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A.

Electronically FILED by
Superior Court of California,
County of Los Angeles
1/04/2024 5:51 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

CAVALRY SPV I, LLC, AS ASSIGNEE OF
CITIBANK, N.A.,
Plaintiff,

vs.

AGUSTIN GUEVARA, an individual;

and DOES 1 through 10 inclusive.
Defendant.

Case No. 24CHLC00298

COMPLAINT FOR:

- 1. ACCOUNT STATED**
- 2. OPEN BOOK ACCOUNT**

DEMAND: \$7,591.45

Plaintiff alleges:

FACTS COMMON TO ALL CAUSES OF ACTION

1.Plaintiff is and at all times herein mentioned, CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A., and successor in interest to original creditor, CITIBANK, N.A..

2.Plaintiff is the only entity that purchased the debt after charge-off and its name and address is as follows: CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A. 1 American Lane Suite 220 Greenwich, CT 06831.

3.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California Debt Collector License Number 10630-99.

4.The charge-off creditor at the time of charge-off is CITIBANK, N.A., PO BOX 78019 PHOENIX, AZ 85062-8019, and the account number associated with this debt is XXXXXXXXXXXXX5117.

5.Plaintiff is informed and believes that Defendant are individuals who currently reside

1 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper
2 Court for trial of this action.

3 6.The name and last known address of the debtor as they appeared in the charge-off
4 creditor's records prior to the sale of the debt is AGUSTIN GUEVARA, 1228 N BERENDO ST
5 APT D, LOS ANGELES, CA 90029-1641.

6 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,
7 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
8 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
9 names and capacities once ascertained.

10 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
11 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
12 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
13 Defendant, and each of them, are jointly and severally liable that the actions described herein
14 were taken as actions for the benefit of the Defendant's separate and/or community property.

15 9.Plaintiff believes that, for value received, Defendant and each of them, executed and
16 delivered a credit card application to the original creditor, CITIBANK, N.A. or made such
17 application over the telephone or Internet. Pursuant to the aforementioned application,
18 CITIBANK, N.A. provided Defendant with a credit account, and granted use privileges on the
19 same, account number XXXXXXXXXXXXX5117 (hereinafter "Account").

20 10.Prior to the commencement of this action, the Account was assigned for value to the
21 Plaintiff and Plaintiff is its current holder.

22 11.Defendant agreed to repay CITIBANK, N.A. and any successors in interest, for any
23 charges on the Account including, but not limited to, charges for purchase of goods and service
24 and/or cash advances and balance.

25 12.Defendant used the Account to make purchases and/or to take cash advances and/or to
26 make balance transfers. Each time the Defendant used the Account to purchase goods and services
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1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
2 repay CITIBANK, N.A. and its successors in interest for the amount of the purchase and/or cash
3 advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and
5 charges due on the Account.

6 14.The date of last payment on the subject account was on October 31, 2022.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$7,591.45, and upon information and belief there is
10 \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and
12 credits, the Defendant owes Plaintiff \$7,591.45.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has
14 been paid, and it is now due and owing.

15 19.Upon information and belief, CITIBANK, N.A. and successors in interest including
16 Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
19 of Billing Statement and/or Account Records provided to the Defendant while the account was
20 active, demonstrating that the debt was incurred by the Defendant as described in California Civil
21 Code section 1788.52(b).

22 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
23 of the Final Billing Statement and/or Transaction History.

24 23.Upon opening the Account with CITIBANK, N.A., the Defendant(s) agree to reimburse
25 CITIBANK, N.A., and hence Plaintiff as successor in interest for the costs related to the collection
26 of amounts owing on the Account. Plaintiff has been required to retain Mandarich Law Group,
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1 LLP to pursue collection of the amount due hereunder.
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3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 24.Plaintiff refers to and incorporates paragraphs 1 through 23.
6

7 25.Within the past 4 years, an account was stated in writing in which it was agreed that
8 Defendant were indebted in the amount previously referenced herein. Although demand has been
9 made upon Defendant, said amount of \$7,591.45 has not been paid, and it is now due, owing and
10 unpaid from Defendant to Plaintiff, as successor in interest.
11

12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 26.Plaintiff refers to and incorporates paragraphs 1 through 25.
15

16 27.Within the past 4 years, Defendant and each of them became indebted in the amount of
17 the previously mentioned herein for a balance due on a book account for goods sold and delivered
18 and/or services rendered by CITIBANK, N.A.. Although demand has been made upon Defendant,
19 said amount of \$7,591.45 has not been paid, and it is now due, owing and unpaid including
20 attorney's fees from Defendant to Plaintiff as successor in interest.
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2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:
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- 4 1. For the damages and money in the sum of \$7,591.45,
5 2. For reasonable attorneys fees pursuant to statute;
6 3. For costs of suit incurred; and
7 4. For such other and further relief as the Court deems just and proper.
8
9 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.
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11 Dated: 12/21/2023

By: **MANDARICH LAW GROUP, LLP**

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15 [X] Martin Weingarten, Esq.
16 *Attorneys for Plaintiff*
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EXHIBIT A

AGUSTIN GUEVARA

Member Since 2022 Account number ending in: 5117

Billing Period: **10/14/22-11/11/22**www.citicards.com**Customer Service 1-855-378-6467****TTY:711**

PO Box 790046 ST. LOUIS, MO 63179-0046

NOVEMBER STATEMENT**Minimum payment due:** **\$166.49****New balance as of 11/11/22:** **\$6,544.85****Payment due date:** **12/09/22**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum payment warning: If you make only the minimum payment each period, you will pay more in interest, and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on the statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	17 years	\$15,089
\$240	3 years	\$8,640 (Savings=\$6,449)

For information about credit counseling services, call 1-877-337-8187.

Account Summary

Previous balance	\$7,531.49
Payments	-\$1,681.49
Credits	-\$0.00
Purchases	+\$593.36
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$101.49

New balance **\$6,544.85****Credit Limit**Credit Limit **\$7,140**

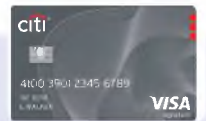
Includes \$0.00 cash advance limit

Available Credit Limit **\$595****Costco Cash Rewards Summary**

as of 11/11/22

\$167.99

» See page 3 for more information about your rewards

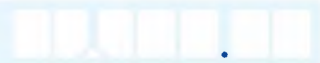


For Payments, send check to: Citi Cards, PO BOX 78019, Phoenix, AZ, 85062-8019

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$166.49****New balance** **\$6,544.85****Payment due date** **12/09/22****Amount enclosed:**

Account number ending in 5117

Please make check payable to Citi Cards.

000000 NC 00 A 0

AGUSTIN GUEVARA
1228 N BERENDO ST
APT D
LOS ANGELES CA 90029-1641

Citi Cards
PO BOX 78019
Phoenix, AZ 85062-8019

AGUSTIN GUEVARA

CARDHOLDER SUMMARY

AGUSTIN GUEVARA

Card ending in 5117

New Charges

\$593.36

ACCOUNT SUMMARY

Sale Date	Post Date	Description	Amount
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Payments, Credits and Adjustments

10/15		ONLINE PAYMENT, THANK YOU	-\$150.00
10/15		ONLINE PAYMENT, THANK YOU	-\$531.49
10/29		ONLINE PAYMENT, THANK YOU	-\$1,000.00

AGUSTIN GUEVARA

Standard Purchases

10/15	10/15	STOOPS - INDIANAPOLIS	INDIANAPOLIS IN	\$100.78
10/25	10/25	PARIS FUEL 24 00001016	PARIS IL	\$140.00
11/02	11/02	MAVERIK #387	WINSLOW AZ	\$55.00
11/04	11/04	COSTCO GAS #0428	ALHAMBRA CA	\$60.00
11/04	11/04	COSTCO WHSE #0428	ALHAMBRA CA	\$237.58

Fees Charged

TOTAL FEES FOR THIS PERIOD \$0.00

Interest Charged

11/11 INTEREST CHARGED TO STANDARD PURCH \$101.49

TOTAL INTEREST FOR THIS PERIOD \$101.49

2022 totals year-to-date

Total fees charged in 2022	\$0.00
Total interest charged in 2022	\$287.92

Interest charge calculation

Days in billing cycle: 29

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	18.99% (V)	\$6,726.10 (D)	\$101.49
ADVANCES			
Standard Adv	28.99% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

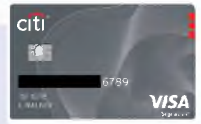
Account messages

Important changes are coming to some of your Card Benefits.

Effective January 22, 2023, Extended Warranty coverage will be discontinued and will no longer be provided for purchases made on or after that date. Coverage for purchases made before that date will continue to be available in accordance with the current benefit terms. For additional information on your remaining benefits, please visit citi.com/Costco or call 1-855-378-6467. For TTY, we accept 711 or other Relay Service.

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 12/02/2022 to allow enough time for regular mail to reach us.

Costco Cash Rewards Summary



Total Costco Cash Rewards Balance:
\$167.99

Costco Cash Rewards Summary

Costco Cash Rewards balance
as of last statement +\$152.03

Earned this period +\$15.96

Total Costco Cash Rewards Balance
Year To Date : **\$167.99**

Costco Cash Rewards
Earned This Period

4% on eligible gas worldwide, including
gas at Costco ¹ +\$10.20

3% on restaurants +\$0.00

3% on eligible travel worldwide +\$0.00

2% on Costco and
Costco.com +\$4.75

1% on all other
purchases +\$1.01

Total Earned: **\$15.96**

» Visit citi.com/Costco
for more information

¹ Up to \$7,000 per year in purchases, then
1% cash back

AGUSTIN GUEVARA

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EXHIBIT B

AGUSTIN GUEVARA

Member Since 2022 Account number ending in: 5117

Billing Period: **05/12/23-06/13/23**www.citicards.com

Customer Service 1-855-378-6467

TTY:711

PO Box 790046 ST. LOUIS, MO 63179-0046

JUNE STATEMENT**Minimum payment due:** **\$7,591.45****New balance as of 06/13/23:** **\$7,591.45****Payment due date:** **06/13/23**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum payment warning: If you make only the minimum payment each period, you will pay more in interest, and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on the statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 months	\$7,591

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance	\$7,453.84
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$137.61

New balance **\$7,591.45****Credit Limit**Credit Limit **\$7,140**

Includes \$0.00 cash advance limit

For Payments, send check to: Citi Cards, PO BOX 78019, Phoenix, AZ, 85062-8019

Pay your bill from virtually anywhere
with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$7,591.45****New balance** **\$7,591.45****Payment due date** **06/13/23****Amount enclosed:** .

Account number ending in 5117

Please make check payable to Citi Cards.

000000 NC 32 A 0

AGUSTIN GUEVARA
1228 N BERENDO ST
APT D
LOS ANGELES CA 90029-1641

Citi Cards
PO BOX 78019
Phoenix, AZ 85062-8019

AGUSTIN GUEVARA

CARDHOLDER SUMMARY

AGUSTIN GUEVARA	Card ending in 5117
New Charges	\$0.00

ACCOUNT SUMMARY

Sale Date	Post Date	Description	Amount
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AGUSTIN GUEVARA

No Activity

Fees Charged

TOTAL FEES FOR THIS PERIOD	\$0.00
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Interest Charged

06/13	INTEREST CHARGED TO STANDARD PURCH	\$137.61
TOTAL INTEREST FOR THIS PERIOD		\$137.61

2023 totals year-to-date	
Total fees charged in 2023	\$200.00
Total interest charged in 2023	\$707.75

Interest charge calculation		Days in billing cycle: 33	
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	20.24% (V)	\$7,520.35 (D)	\$137.61
ADVANCES			
Standard Adv	29.99% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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